



INDIAN POLITY



- **ALTERNATIVE DISPUTE RESOLUTION MECHANISM**
- **LOK ADALAT**



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MODULE – 79

WHY IN NEWS?

The New Delhi International Arbitration Centre Ordinance, 2019 was promulgated.

CONTEXT

Previously, The Lok Sabha has passed a similar bill ie the New Delhi International Arbitration Centre Bill to set up a revamped International Arbitration Centre at New Delhi with an aim to *make India the hub of arbitration.*

ORDINANCE

PROBABLE MAINS QUESTION

1. Why having an alternative dispute resolution mechanism imperative for the Indian legal scenario? Discuss the need for having an institutionalized arbitration mechanism.
2. It is said that to improve ease of doing business in India, there is a need to provide viable alternatives to litigation. Examine in detail why and what kind of institutional arbitration mechanism is required in India.

THE ORDINANCE IN DETAIL...



International Centre for Alternative Dispute Resolution, New Delhi

DETAILS

New Delhi International Arbitration Centre (NDIAC):

- The Ordinance seeks to provide for the establishment of the NDIAC to conduct arbitration, mediation, and conciliation proceedings.
- It declares the NDIAC as an institution of national importance.

THE ORDINANCE IN DETAIL...



DETAILS

International Centre for Alternative Dispute Resolution (ICADR):

- The ICADR is a registered society to promote the resolution of disputes through alternative dispute resolution methods.
- The Ordinance seeks to transfer the existing ICADR to the central government.
- Upon notification by the central government, **all the rights, title, and interest in the ICADR gets transferred to the NDIAC.**



ALTERNATIVE DISPUTE RESOLUTION MECHANISMS

QUICK NOTES ON ICADR

- 1 It is an autonomous organization with its headquarters at New Delhi.
- 2 The Regional Centres of ICADR are fully funded and supported by the respective State Governments.



Ministry of Law and Justice
Government of India



- 3 It was set up by the **Department of Legal Affairs** as an autonomous body registered under the **Societies Registration Act, 1860**.
- 4 The Minister for Law & Justice is the Chairman of ICADR.
- 5 Its main object is to **promote, popularize and propagate Alternative Dispute Resolution** to facilitate early resolution of disputes to reduce the burden of arrears in the Courts.

ALTERNATIVE DISPUTE RESOLUTION MECHANISMS

THE ORDINANCE IN DETAIL...

COMPOSITION

The NDIAC will consist of seven members including:

- 1** A Chairperson who has been a Judge of the Supreme Court or a High Court, or an eminent person with special knowledge and experience in the conduct or administration of arbitration
- 2** Two eminent persons having substantial knowledge and experience in institutional arbitration
- 3** Three ex-officio members, including a nominee from the Ministry of Finance and a Chief Executive Officer (responsible for the day-to-day administration of the NDIAC),
- 4** A representative from a recognised body of commerce and industry, appointed as a part-time member, on a rotational basis.

THE ORDINANCE IN DETAIL...

TERM AND SUPERANNUATION

- The members of NDIAC will hold office for three years and will be eligible for re-appointment.
- The retirement age for the Chairperson is 70 years and other members is 67 years



OBJECTIVES AND FUNCTIONS OF THE NDIAC

- Promoting research, providing training and organising conferences and seminars in alternative dispute resolution matters.
- Providing facilities and administrative assistance for the conduct of arbitration, mediation and conciliation proceedings.
- Maintaining a panel of accredited arbitrators, mediators and conciliators.

LOK ADALATS

Lok Adalat is a forum where the cases (or disputes) which are pending in a court or which are at pre-litigation stage (not yet brought before a court) are compromised or settled in an amicable manner.

1 The word 'Lok Adalat' means People's Court.

2 This system is based on Gandhian principles.



3 It is one of the components of ADR (Alternative Dispute Resolution) system.

4 As the Indian courts are overburdened with the backlog of cases and the regular courts are to decide the cases involving a lengthy, expensive and tedious procedure.

5 The court takes years together to settle even petty cases. Lok Adalat, therefore, provides alternative resolution or device for expeditious and inexpensive justice.

In Lok Adalat proceedings, there are no victors and vanquished and, thus, no rancour.



- 6 The experiment of 'Lok Adalat' as an alternate mode of dispute settlement has come to be accepted in India, as a viable, economic, efficient and informal one.
- 7 The Lok Adalat is another alternative in judicial justice.
- 8 This is a recent strategy for delivering informal, cheap and expeditious justice to the common man by way of settling disputes, which are pending in courts and also those, which have not yet reached courts by negotiation, conciliation and by adopting persuasiveness, common sense and human approach.

LOK ADALATS

STATUTORY STATUS TO LOK ADALATS



- 1 The first Lok Adalat camp was organized in Gujarat in 1982.
- 2 This initiative proved very successful.
- 3 In view of its growing popularity, there arose a demand for providing a statutory backing to this institution
- 4 Hence, the institution of Lok Adalat has been given statutory status under the Legal Services Authorities Act, 1987.

WHAT ARE THE PROVISIONS AS PER LEGAL SERVICES AUTHORITIES ACT, 1987?



1 There can be different authorities at the levels of State, District, Taluk which exercises such jurisdiction of Lok Adalats.

2 Every Lok Adalat consist of such persons as specified by the agency. Generally, a Lok Adalat consists of a judicial officer as the chairman and a lawyer (advocate) and a social worker as members.

3 The Lok Adalat can deal with not only the cases pending before a court but also with the disputes at pre-litigation stage.
Eg: Matrimonial or family disputes, disputes relating to electricity and telephone bills, consumer grievances cases etc.



WHAT ARE THE PROVISIONS AS PER LEGAL SERVICES AUTHORITIES ACT, 1987?

- 4** Any case pending before the court can be referred to the Lok Adalat for settlement if the parties agree to settle the disputes amicably between them in the Lok Adalat.



- 5** The Lok Adalat shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure (1908), while trying a suit in respect of the following matters:
- a) The summoning and enforcing the attendance of any witness examining him on oath;
 - b) The discovery and production of any document;
 - c) The reception of evidence on affidavits;
 - d) The requisitioning of any public record or document from any court or office; and
 - e) Such other matters as may be prescribed.

WHAT ARE THE PROVISIONS AS PER LEGAL SERVICES AUTHORITIES ACT, 1987?



- 6** An award of a Lok Adalat shall be deemed to be a decree of a Civil Court or an order of any other court.
- 7** Every award made by a Lok Adalat shall be final and binding on all the parties to the dispute.
- 8** No appeal shall lie to any court against the award of the Lok Adalat.

If the parties are not satisfied with the award of the Lok Adalat though there is no provision for an appeal against such an award, but they are free to initiate litigation by approaching the court of appropriate jurisdiction by filing a case by following the required procedure, in exercise of their right to litigate.

LOK ADALATS

ADVANTAGES OF LOK ADALAT

- 1** There is no court fee and if court fee is already paid the amount will be refunded if the dispute is settled at Lok Adalat.

It is less expensive
- 2** The basic features of Lok Adalat are the procedural flexibility and speedy trial of the disputes.

It is less time-consuming
- 3** There is no strict application of procedural laws like the Civil Procedure Code and the Evidence Act while assessing the claim by Lok Adalat.

It is free from technicalities vis-à-vis conducting of cases in law courts.
- 4** The parties to the dispute can directly interact with the judge through their counsel which is not possible in regular courts of law

Parties are free to discuss their differences of opinion without any fear of disclosure before any law courts.
- 5** The award by the Lok Adalat is binding on the parties and it has the status of a decree of a civil court and it is non-appealable.

Parties have the feeling that there is no losing or winning side between them but at the same time their grievance is redressed and relationship is restored.

PERMANENT LOK ADALATS

1

Lok Adalats was constituted to provide free legal services to the poor.

2

The major draw back is that the system is based upon compromises between the parties.

3

Some cases needs to be judged on merits of the case rather than compromising.

6

It is, therefore, proposed to amend the Legal Services Authorities Act, 1987 to set up Permanent Lok Adalats for conciliation and settlement of cases relating to public utility services.

5

If such cases are settled even at the pre-litigation stage, it would considerably reduce the workload of regular courts.

4

Also, cases in relation to public utility services like MTNL need to be urgently settle without any delay.

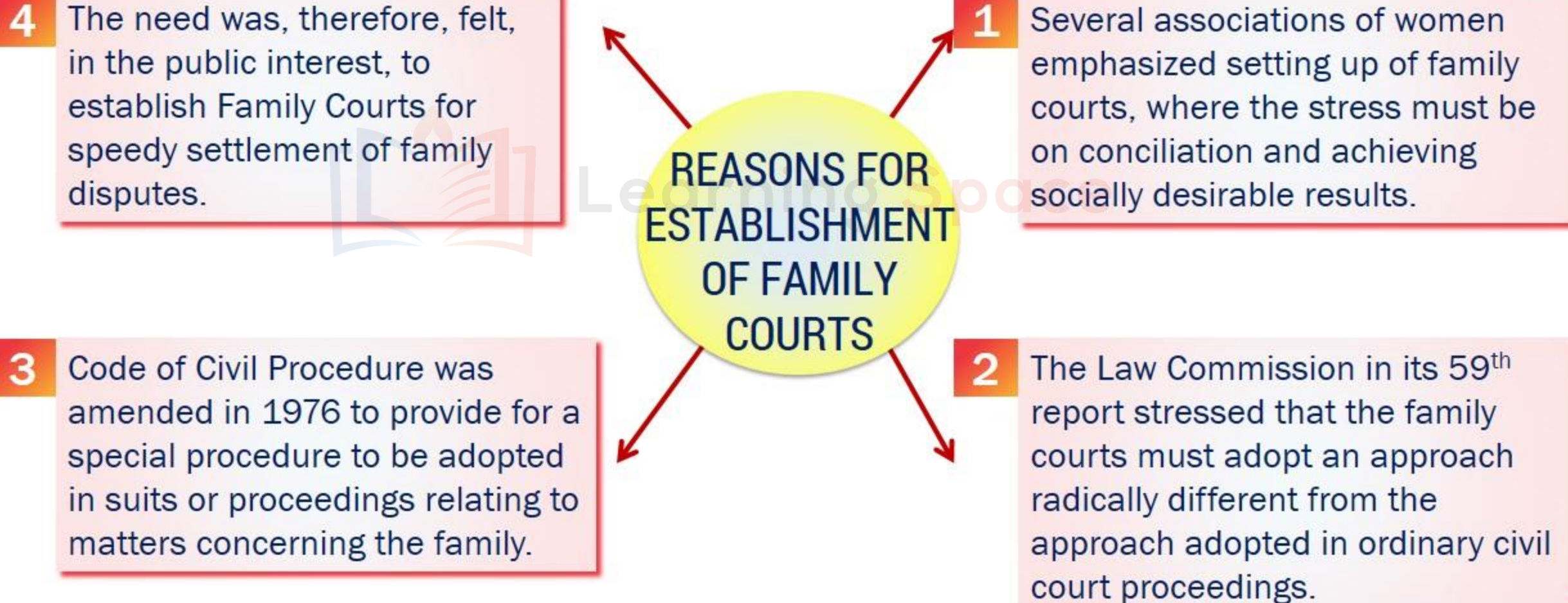
PERMANENT LOK ADALATS

FEATURES OF PERMANENT LOK ADALATS

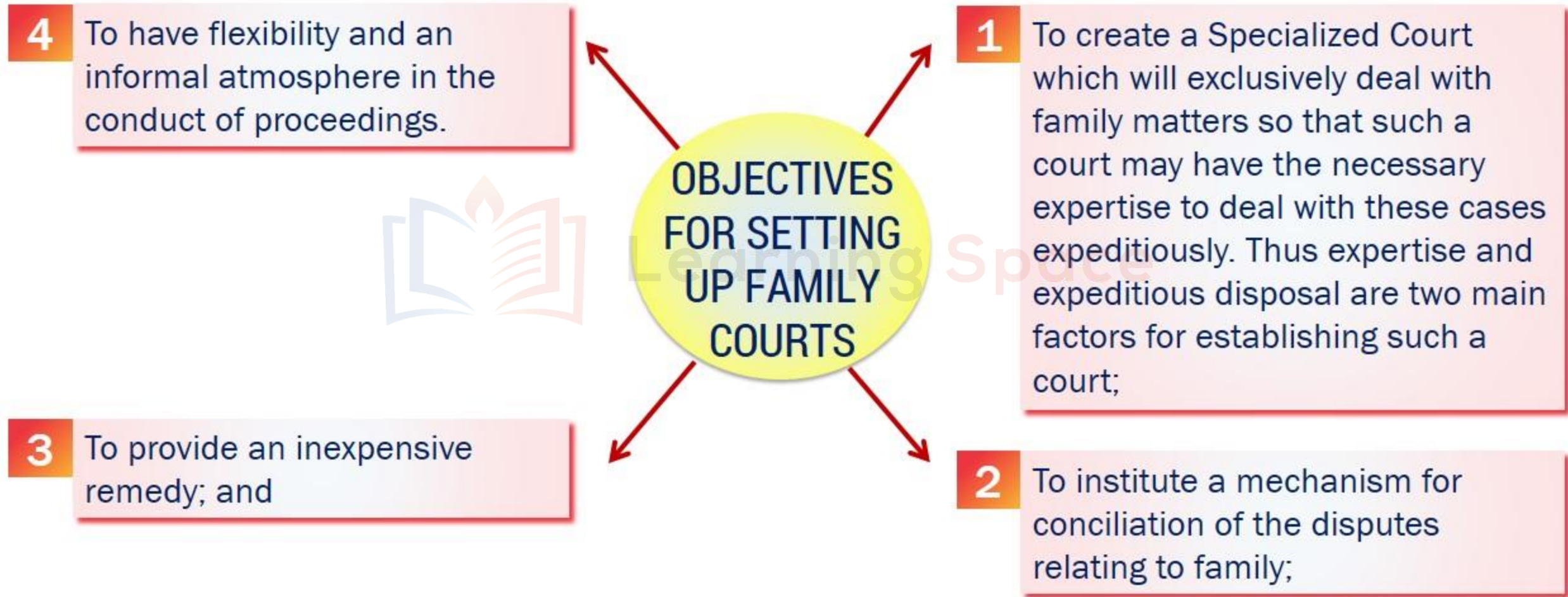


- 1** Permanent Lok Adalats have been set up as permanent bodies with a Chairman and two members for providing compulsory pre-litigative mechanism for conciliation and settlement of cases relating to Public Utility Services like transport, postal, telegraph etc.
- 2** The pecuniary jurisdiction of the Permanent Lok Adalat shall be up to rupees ten lakhs. However, the Central Government may increase the said pecuniary jurisdiction from time to time.
- 3** Every award made by the Permanent Lok Adalat shall be final and binding on all the parties.

The Family Courts Act, 1984 was enacted to provide for the establishment of Family Courts with a view to promote conciliation and secure speedy settlement of disputes relating to marriage and family affairs.



Therefore, the main objectives and reasons for setting up of Family Courts are:



FAMILY COURT

Some of the features of Family Courts as per Family Court Act, 1984 are:

1 It makes it obligatory on the State Governments to set up a Family Court in every city or town with a population exceeding one million.

2 It exclusively provides within the jurisdiction of the Family Courts the matters relating to matrimonial relief, guardianship of minor etc.

3 It provides for only one right of appeal which shall lie to the High Court

4 It provides for the establishment of Family Courts by the State Governments in consultation with the High Courts



The Gram Nyayalayas Act, 2008 has been enacted to provide for the establishment of the Gram Nyayalayas at the grass roots level for the purposes of providing access to justice to the citizens at their doorsteps and to ensure that opportunities for securing justice are not denied to any citizen due to social, economic or other disabilities.

1

- Access to justice remains to be a problem in our country.
- Need to fulfil Article 39A.

2

Recently government has simplified various court procedural systems. Alternative dispute resolution mechanism is one among them. Gram Nyayalayas is a further step in this direction.

REASONS FOR ESTABLISHMENT OF GRAM NYAYALAYAS

3

Law Commission of India in its 114th report suggested speedy, inexpensive and substantial justice to common man. The Gram Nyayalayas Act, 2008 is broadly based on the recommendations of the Law Commission.

4

Justice to the poor at their door step is a dream of the poor. Setting up of Gram Nyayalayas in the rural areas would bring to the people of rural areas speedy, affordable and substantial justice

FEATURES OF GRAM NYAYALAYAS

Some of the features of the Gram Nyayalayas Act, 2008 are:

- 1 The Gram Nyayalaya shall be court of Judicial Magistrate of the first class and its Nyayadhikari shall be appointed by the State Government in consultation with the High Court.



- 2 The Gram Nyayalaya shall be established for every Panchayat at intermediate level or a group of contiguous Panchayats.
- 3 The Nyayadhikaris who will preside over these Gram Nyayalayas are strictly judicial officers and will be drawing the same salary, deriving the same powers as First Class Magistrates working under High Courts.
- 4 The Gram Nyayalaya shall be a mobile court and shall exercise the powers of both Criminal and Civil Courts.

FEATURES OF GRAM NYAYALAYAS

Some of the features of the Gram Nyayalayas Act, 2008 are:

- 5** The seat of the Gram Nyayalaya will be located at the headquarters of the intermediate Panchayat, they will go to villages, work there and dispose of the cases.
- 6** The Gram Nyayalaya shall try to settle the disputes as far as possible by bringing about conciliation between the parties
- 7** The Gram Nyayalaya shall not be bound by the rules of evidence provided in the Indian Evidence Act, 1872 but shall be guided by the principles of natural justice and subject to any rule made by the High Court.
- 8** Appeal in criminal cases shall lie to the Court of Session, which shall be heard and disposed of within a period of six months from the date of filing of such appeal.
- 9** Appeal in civil cases shall lie to the District Court, which shall be heard and disposed of within a period of six months from the date of filing of the appeal.
- 10** A person accused of an offence may file an application for plea bargaining.

CURRENT AFFAIRS

TELE LAW AND NYAYA BANDHU APP

Recently, Union Minister for Law and Justice launched the 'tele-law' service and a mobile app for legal aid.

The NALSA will provide a panel of lawyers from State capitals, who will be available through video conferencing to provide legal advice and counselling to the applicants.

Every CSC will also engage a Para Legal Volunteer, who will be the first point of contact for the rural citizens.

Also launched an app Nyaya Bandhu for solidifying the pro bono (providing legal services without charge) culture in the country.

This will connect the citizens to legal service providers. People will be able to seek legal advice from lawyers through video conferencing available at the CSC.

Tele Law app aims to mainstream Legal Aid through Common Service Centres.



It provides a platform to connect the registered eligible beneficiaries with the practicing advocates who are willing to volunteer their time and money in providing their services as pro bono.

Both initiatives are in pursuance of Constitutional commitment under Article 39A.

SUMMARY OF LECTURE

- New Delhi International Arbitration Centre Ordinance
- Lok Adalat
- Permanent Lok Adalat
- Family Courts
- Gram Nyayalayas
- Tele law and Nyaya Bandhu app

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